

STATE OF NEW YORK

8288--A

2025-2026 Regular Sessions

IN ASSEMBLY

May 9, 2025

Introduced by M. of A. SEAWRIGHT, SANTABARBARA -- read once and referred to the Committee on People with Disabilities -- recommitted to the Committee on People with Disabilities in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the mental hygiene law, in relation to establishing certification and attestation for care managers employed by care coordination organizations

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Short title. This act shall be known and may be cited as
2 "Ella's law".

3 § 2. Section 13.23 of the mental hygiene law is amended by adding a
4 new subdivision (d) to read as follows:

5 (d) 1. No care manager employed by or under contract with a care coor-
6 ordination organization shall provide care management services to an indi-
7 vidual unless such care manager has completed all training requirements
8 applicable to their position, consistent with standards established by
9 the office and the department of health.

10 2. Each care coordination organization shall certify, in a form and
11 manner prescribed by the office, that each care manager has completed
12 all required training prior to assignment to any individual.

13 3. Each care coordination organization shall maintain documentation
14 sufficient to demonstrate compliance with this subdivision, including
15 but not limited to records of training completion for each care manager,
16 and shall make such documentation available to the office upon request.

17 4. The office, in consultation with the department of health, may
18 promulgate rules and regulations necessary to implement the provisions
19 of this subdivision, including but not limited to standards for certif-
20 ication, documentation, and compliance.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 § 3. This act shall take effect on the one hundred eightieth day after
2 it shall have become a law. Effective immediately, the addition, amend-
3 ment and/or repeal of any rule or regulation necessary for the implemen-
4 tation of this act on its effective date are authorized to be made and
5 completed on or before such effective date.